ZIMBABWE ELECTORAL COMMISSION

Report on

the By- Elections

Held on

30 November 2024

EXECUTIVE SUMMARY

1. The Zimbabwe Electoral Commission (ZEC) is an Election Management Body (EMB) established in terms of section 238 of the Constitution of Zimbabwe.

2. Its functions are provided for in section 239 of the said Constitution.

3. Following local authority vacancies that arose in three (3) wards namely Makoni RDC Ward 38, Victoria Falls Municipality Ward 1 and Bindura RDC Ward 10, the Commission issued **ZEC Notices on 01 October and 11 October 2024** calling for by-elections to be held on 30 November 2024,

4. **The Commission submitted a budget of $377 859.93 to Treasury and only**

   $206 000 was released for the by-elections.

5. The Commission conducted voter education programmes for the by-elections between 7 October 2024 and 23 October 2024. The messages centred on the cause of the by-elections, qualifications for candidates, educating the electorate on voter registration and on how to vote.

6. The Nomination Courts to receive nomination papers for candidates to stand for election as councillors for Makoni RDC Ward 38 and Victoria Falls Municipality Ward 1 sat on 15 October 2024. The nomination court for Bindura RDC Ward 10 sat on 29 October 2025. The following candidates were nominated at the close of sitting of the courts:

NOMINATED CANDIDATES

Nominated Candidates for the City of Victoria Falls and Makoni RDC

District	Local Authority	Ward	Candidate 's Name	Sex	Political Party
Hwange	City of Victoria Falls	1	Mambume Ephias	M	INDEPENDENT
			Mutasa Tonderai	M	ZANU PF
Makoni	Makoni RDC	38	Madumira Tonderai	M	ZANU PF
			Zuze Leonard	M	INDEPENDENT

Nominated Candidate for Bindura RDC Ward 10

District	Local Authority	Ward	Candidate 's Name	Sex	Political Party
Bindura	Bindura RDC	10	Masimbiti Erisa	F	INDEPENDENT
			Nyakudya Bigboy	M	ZANU PF

6.1. Mutasa Tonderai of ZANU PF party was duly elected as councillor for Ward 1 of the City of Victoria Falls after the High Court under case number HCB1303/24 set aside the nomination of Mambune Ephias.

7. A total of seven thousand seven hundred **(7 700)** ballot papers were printed for the Makoni RDC Ward 38 and Bindura RDC Ward 10 by-elections. This information was publicised in terms of the law.

8 The Commission established a total of thirteen (13) polling stations for voting purposes for the two by-elections. These were advertised in the print media in accordance with provisions of the law.

9. The Commission used its own fleet of vehicles for the by-elections.

10. The training of electoral officers was conducted between 20 and 26 November 2024. Deployment was done prior the training of electoral officers.

11. Applications were lodged for the accreditation of observers.

12. Polling took place on 30 November 2024 and election results were announced on the same day.

13. Below are the results of the by-elections held on 30 November 2024.

NAMES OF THE CANDIDATES ELECTED AS COUNCILLOR FOR 30 NOVEMBER 2024 BY-ELECTIONS

Ser.	Local Authority	Ward	Winner	Sex	Party
1.	Makoni RDC	38	Madumira Tonderai	M	ZANU PF
2.	Victoria Falls Municipality	1	Mutasa Tonderai	M	ZANU PF
3.	Bindura RDC	10	Nyakudya Bigboy	M	ZANU PF

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PART I: THE ZIMBABWE ELECTORAL COMMISSION

1.0 Composition

The Zimbabwe Electoral Commission (ZEC) is an Election Management Body (EMB) established in terms of the section 238 of the Constitution of Zimbabwe.

It is composed of a Chairperson appointed by the President after consultation with the Judicial Service Commission and the Committee on Standing Rules and Orders and eight other members appointed by the President from a list of not fewer than twelve nominees submitted by the Committee on Standing Rules and Orders.

At the time of the by-election, the Commission consisted of nine members as follows:

1.	Honourable Mrs Justice Priscilla Makanyara Chigumba	-	Chairperson
2.	Ambassador Rodney Simukai Kiwa	-	Deputy Chairperson
3.	Mrs Abigail Millicent Mohadi- Ambrose	-	Commissioner
4.	Mr Shepherd Manhivi	-	Commissioner
5.	Ms Catherine Mpofu	-	Commissioner
6.	Mrs Rosewita Murutare	-	Commissioner
7.	Mr Jasper Mangwana	-	Commissioner
8.	Dr Janet Mbetu Nzvenga	-	Commissioner
9.	Dr Kudzai Shava	-	Commissioner

1.2 Functions of the Commission

The functions of the Zimbabwe Electoral Commission are provided for in section 239 of the Constitution as follows:

a. to prepare for, conduct and supervise –
   i. elections to the office of President and to Parliament;
   ii. elections to provincial and metropolitan councils and the governing bodies of Local Authorities;
   iii. elections of members of the National Council of Chiefs established by section 285; and
   iv. referendums;
   v. and to ensure that those elections and referendums are conducted efficiently, freely, fairly, transparently and in accordance with the law,

b. to supervise elections of the President of the Senate and the Speaker and to ensure that these elections are conducted efficiently and in accordance with the law;
c. to register voters;
d. to compile voters' rolls and registers,
e. to ensure the proper custody and maintenance of voters rolls and registers;
f. to delimit constituencies, Wards and other electoral boundaries;
g. to design, print and distribute ballot papers, approve the form of and procure ballot boxes, and establish and operate polling centres;
h. to conduct and supervise voter education;
i. to accredit observers of elections and referendums;
j. to give instructions to persons in the employment of the State or of a Constituency for the purpose of ensuring the efficient, free, fair, proper and transparent conduct of any election or referendum; and
k. to receive and consider complaints from the public and to take such action in regard to the complaints as it considers appropriate.

Additional Functions

The Electoral Act [*Chapter 2:13*] in Section 5 thereof provides for additional functions and powers of the Commission as follows:

a. undertaking and promoting research into electoral matters
b. developing expertise and the use of technology in regard to the electoral processes; and
c. promoting co-operation between Government, political parties and civil society in regard to elections; and
d. keeping the public informed about -
    i. the times and places where persons can register as voters and the progress of the voter registration exercise; and
    ii. the delimitation of Wards, constituencies and other electoral boundaries, and
    iii. the location and boundaries of polling stations and when they are open for inspection; and
    iv. voters roll and the times and places at which they are open for inspection; and
    v. political parties and candidates contesting every election and;
    vi. voting; and

vii. generally, all matters relating to the Commission's work and the electoral process; and

e. making recommendations to Parliament on appropriate ways to provide public financing for political parties.

PART II: BUDGET

INTRODUCTION

The Commission submitted a budget of $377 859.93 for the by-elections. However, Treasury only released $206 000 for the by-elections held on 30 November 2024. The funds for the by-election were released late in the election programme. There was a budget deficit of $171 859.93

Budget Control

The Commission controlled the budget by:

- Reducing the duration of voter education period
- Reducing the number of Polling Officers
- Maintaining the same number of polling stations advertised.

The Impact Reduction on Budget

Reducing the number of voter education days compromised the quality of voter education.

PART III: PREPARATIONS FOR THE BY-ELECTIONS

3.1 ZEC Notice dated 01 October 2024

Following the receipt of notifications of the vacancies that had arisen in Victoria Falls Municipality Ward 1, Makoni RDC Ward 38 and Bindura RDC Ward 10, the Commission issued **ZEC Notices** dated 24 September 2024, 01 October 2024 and 11 October 2024 respectively calling for by-elections to be held on 30 November 2024. The seats became vacant by reasons of recall, resignation and death of councillors on 24 July 2024, 18 September 2024 and 26 September 2024 respectively.

3.2 Voter Education

The pre-nomination voter education exercises for the said local authority by-elections were conducted between 30 September and 22 October 2024 to sensitise the electorate of the by-elections and in preparation for the nomination courts. The messages centred on what had caused the by-elections and who qualified to be candidates in the elections. This exercise was conducted by voter educators for a period of five days in the respective local authorities. The Voter Education teams distributed pamphlets, fliers and posters at institutions within Wards in which the by-elections were to be held.

The pre-polling voter education was conducted between the 19th and 23rd of November 2024. The messages centred on preparation of the electorate on how to cast a vote. The Commission distributed pamphlets and addressed people at gatherings using the public address system as part of its voter education strategies.

Nomination Courts

The Nomination Courts to receive nomination papers for candidates to stand for election as councillors sat on 15 October 2024. At the close of sitting of the Nomination Courts, the candidates listed in the Schedules below were duly nominated for the wards concerned. Polling took place on 30 November 2024.

NOMINATED CANDIDATES

Nominated Candidates for Victoria Falls Municipality Ward 1 and Makoni RDC Ward 38

District	Local Authority	Ward	Candidate 's Name	Sex	Political Party
Hwange	City of Victoria Falls	1	Mambume Ephias	M	INDEPENDENT
			Mutasa Tonderai	M	ZANU PF
Makoni	Makoni RDC	38	Madumira Tonderai	M	ZANU PF
			Zuze Leonard	M	INDEPENDENT

Nominated Candidate for Bindura RDC Ward 10

District	Local Authority	Ward	Candidate 's Name	Sex	Political Party
Bindura	Bindura RDC	10	Masimbiti Erisa	F	INDEPENDENT
			Nyakudya Bigboy	M	ZANU PF

Mutasa Tonderai of ZANU PF party became duly elected as the councillor for Ward 1 of the City of Victoria Falls following the setting aside of the nomination of Mambune Ephias through a court order under case number HCB1303/24 of the 21st of November 2024.

3.4 Closure of the Voters' Rolls

The voters' rolls for the wards contested closed on the day the vacancies arose in line with the provisions of section 121A (3) of the Electoral Act [*Chapter 2:13*]

Provision of voters rolls for Contested Wards

The contesting candidates were each issued with a copy of the voters roll for the wards in which they were contesting. The polling stations, and the ward collation centres had two copies of the voter's roll. One voters' roll (without pictures) was for display and the other voters' roll was used for polling. An electronic voter's roll was also in place at the ward command centre on polling day.

Multiparty Liaison Committee Meetings

Two (2) Multi-party Liaison Committee meetings were successfully convened in the contested wards in preparation of polling day. The candidates and their representatives attended the meetings and discussed the tabled issues amicably.

Recruitment, Training and Deployment of Electoral Officers

Personnel to conduct the by-elections were drawn from the host provinces, the Head Office, local authorities concerned and the Civil Service Commission. The training of electoral officers was done during the period between 20 and 26 November 2024. Deployment of electoral officers took place soon after training was concluded. The Zimbabwe Republic Police (ZRP) officers were deployed alongside electoral staff to provide security.

Setting up of polling stations and rehearsals were done a day before polling.

Accreditation of Observers and Media Personnel

The accreditation of observers for the by-elections was conducted during the period between 24 and 30 November 2024. Accreditation teams were deployed at ZEC Head Office, and the districts where by-elections took place.

PART IV: CONDUCT OF ELECTIONS - POLLING

Polling

Polling took place on 30 November 2024 commencing at 0700 hours and ending at 1900 hours. Due regard was given to the provision that no voter who will be in the queue of persons waiting to vote as at 1900 hours would be turned away.

Every polling station was staffed with electoral officers. In addition to the electoral officers, there were candidates and election agents. Police officers provided security and performed other duties as provided for in the law.

Only one (1) distinctly marked ballot box for a ward by-election was set up in each polling station.

Assisted Voters

Constituency	**Assisted Voters**	
	Female	**Male**
Makoni RDC Ward	23	14
Bindura RDC Ward 10	34	10
Total	**57**	**24**

The 30 November 2024 by-elections had a total of eighty-one (81**)** assisted voters**.** The illiterate and people with disabilities who were not able to vote without assistance were assisted by persons of their choice in terms of the law. A person who did not bring an assistant was assisted by the presiding officer in the presence of two other polling officers and the police officer on duty.

Turned Away Voters

Province	Male	Female
Makoni RDC Ward 38	43	46
Bindura RDC Ward 10	55	95
Total	**98**	**141**

A total of two hundred and thirty-nine **(**239) voters were turned away during the by-elections.

The reasons for turning away the voters included non-possession of identity documents, defaced identity documents and not appearing on the voters' roll.

Verification and Counting

The counting of the votes was preceded by the verification of ballots which process was administered at polling station level by the presiding officers in the presence of candidates and their election agents as well as observers present. The ward elections officer declared the results. The results were posted outside the polling stations and ward collation centres.

4.3.1 Results of poll

The summary of the results for by-election are as follows:

Local Authority	Ward	Candidates' Names	Sex	Party	Votes	Remarks
Bindura RDC	*10*	*Masimbiti Erisa*	*F*	*Independent*	40	
		Nyakudya Bigboy	***M***	***ZANU PF***	***1149***	***Winner***
				Valid Votes	**1189**	
				Rejected Votes	**19**	
				Total	**1208**	
				Voter Population	**4015**	
				% Turn-Out	**30.1**	

In Bindura, the ZANU PF candidate Nyakudya Bigboy received the majority of the votes cast and was declared duly elected councillor for Bindura RDC Ward 10 with effect from 30 November 2024.

Local Authority	Ward	Candidates' Names	Sex	Party	Votes	Remarks
Makoni RDC	***38***	***Madumira Tonderai***	***M***	***ZANU PF***	***890***	***Winner***
		Zuze Leonard M	*M*	*Independent*	**69**	
				Valid Votes	**959**	
				Rejected Votes	**14**	
				Total	**973**	
				Voter Population	**3136**	
				% Turn-Out	**30.6**	

In Makoni, the ZANU PF candidate Madumira Tonderai received the majority votes and was declared duly elected councillor for Makoni RDC Ward 38 with effect from 30 November 2024.

Data Analysis by Sex

The table below shows the number of voters by sex:

Ward	VOTED		Total Voted	Voters Assisted		Redirected		Turned Away	
	Male	**Female**		**Male**	**Female**	**Male**	**Female**	**Male**	**Female**
Makoni RDC Ward 38	446	526	972	14	23			43	46
Bindura RDC Ward 10	407	801	1208	10	34	1	11	55	95
Total	853	1327	2180	24	57			98	141

4.5.1 The table shows that there were more women than men who participated in the 30 November 2024 by-elections. one thousand three hundred and twenty-seven (1327) women out of two thousand one hundred and eighty (2180) voters cast their votes on 30 November 2024. This interprets to 60.8 % of women who participated in the 30 November 2024 by-elections.

The Environment

The elections were held under peaceful conditions and the Commission did not receive any report of politically motivated incidents.

PART V: OBSERVATIONS, RECOMMENDATIONS AND CONCLUSION

OBSERVATIONS, RECOMMENDATIONS AND CONCLUSION

The Commission made some of observations and recommendations as presented below:

Budget

Observation

The challenges of late release of election funds and underfunding continue to recur during elections in Zimbabwe. These have a negative impact on the handling of election processes especially in procurement of goods and services and deployment of human resources.

Recommendation

The Commission recommends that adequate election funds be released timeously to facilitate the smooth preparation and proper conduct of elections.

Registration of Political Parties

Observation

Political parties are not registered in Zimbabwe. There is need to ensure strict enforcement of the Code of Conduct for political parties. Behaviour of political parties and contesting candidates is regulated by a Code of Conduct which cannot be enforced.

Recommendation

The Parliament of Zimbabwe must strengthen the Code of Conduct of political parties and candidates in order to address electoral malpractices so as to promote the conduct of peaceful, free, fair and credible electoral process in Zimbabwe.

Conclusion

Notwithstanding the logistical and financial challenges encountered, the Commission discharged its constitutional mandate in a transparent and professional manner.

The Commission consulted and worked in collaboration with its stakeholders throughout the election period ensuring that the process was inclusive and transparent.

The Commission is satisfied that the 30 November 2024 by-elections were conducted in a manner and under conditions that allowed voters to freely express their will.

Signed:  Date: 9 April 2025

Hon. Mrs Justice Priscilla Makanyara Chigumba